

REAL ESTATE PURCHASE AGREEMENT

THIS REAL ESTATE PURCHASE AGREEMENT (the “Agreement”) is made and entered into this _____ day of _____, 20____, by and between KT Land Holdings, LLC, a Utah limited liability company, with a principal address of 595 S. Riverwoods Parkway, Suite 400, Logan, Utah 84321, (the “Seller”), and the City of Cheyenne, a municipality organized under the laws of the State of Wyoming, 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (the “City”).

WITNESSETH:

WHEREAS, the City wishes to secure, for public purposes, the real property legally described as:

Lot 1 Block One of Scenic Development 8th filing, a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M. Laramie County, Wyoming.

Approximately 8.37 acres, more or less

together with the Seller’s rights, privileges, interests and appurtenances related to said real property, including, but not limited to, all right, title and interest in and to adjacent streets, alleys, and rights-of-way, all of which is hereinafter referred to as the “Real Property;” and

WHEREAS, the City is acquiring the Real Property to support the development and operation of affordable housing, including through a long-term ground lease or similar development arrangement with a qualified developer; and

WHEREAS, the City expects to use funds donated or otherwise provided to the City for the purpose of supporting affordable housing projects, and the City has determined, or will determine before Closing, that acquisition of the Real Property is consistent with the purpose, restrictions, and conditions applicable to such funds; and

WHEREAS, the City has determined that acquisition of the Real Property for affordable housing purposes serves a valid public purpose; and

WHEREAS, the Seller is the owner of the above-described Real Property which is generally located at the corner of Carlson Street and Converse Avenue, City of Cheyenne, consisting of approximately 364,597 square feet, more or less; and

WHEREAS, the Seller is willing to sell to the City and the City is willing to purchase from Seller the Real Property upon the terms and conditions hereinafter stated; and

NOW, THEREFORE, for good and valuable consideration, the receipt of which is hereby acknowledged, the parties hereto agree as follows:

1. *Purchase and Sale.* Seller agrees to sell to the City and the City agrees to purchase from Seller:

1.1. The Real Property, described above.

1.2. All licenses, permits and franchises issued by any governmental authority to or in favor of Seller and pertaining to the ownership, development or use of the Real Property, if any; and

1.3. All contract rights and general intangible rights pertaining to the ownership, development or use of the Real Property, if any; and

1.4. All improvements, structures and fixtures situated on the Real Property, which will be conveyed in an “as is” condition without any representations or warranties relating to their physical condition and without ascribing any value to them, except that nothing in this Section shall limit Seller’s representations, warranties, covenants, or obligations expressly set forth in this Agreement or the City’s right to terminate this Agreement as provided herein; and

1.5. All fixtures, equipment and other personal property of every kind and nature now installed, located, situated or used in, on, or about, or in connection with the operation, use, or enjoyment of the Real Property; and

1.6. All: (i) contracts or agreements affecting or relating to the Real Property, but only to the extent the City elects to take an assignment thereof; (ii) licenses, permits or similar documents; (iii) plans, drawings, specifications, surveys, engineering reports, and other technical reports or descriptions of the Real Property, to the extent Seller has any in its possession; and (iv) insurance contracts or policies which pertain to the Real Property, but only to the extent the City elects to take an assignment thereof.

1.7. Prior to closing, the Seller shall pay, when due and payable, all real property taxes and assessments asserted against the Real Property for the current year and for all prior years. All such taxes and assessments for the current year will be apportioned between the parties on a pro rata basis as of the date of closing.

2. *Purchase Price.*

2.1. The purchase price to be paid by the City to Seller for the Real Property and all of the Seller’s interests in said Real Property, as described in Section 1 of this Agreement, is two million six hundred forty-five thousand dollars (\$2,645,000.00) (the “Purchase Price”), subject to proration and adjustments as provided herein.

2.2. The Purchase Price shall be paid to Seller or, with written authorization, to Seller’s designee, in full at the time of Closing, subject to pro-rations and adjustments, provided, however, that the City’s duty to pay the Purchase Price at Closing is subject to the requirement that the Seller complete an IRS Form W-9 and otherwise cooperate with the City in reporting the

Purchase Price and the other terms and conditions of this Agreement to the Internal Revenue Service as required by law.

2.3. Seller shall convey the Real Property to the City in accordance with the title requirements set forth in Section 3 and the closing conditions set forth in Section 6. The City shall have the right to cancel this Agreement if Seller is unable or otherwise fails, neglects, or refuses to convey title to the City in accordance with the terms and conditions of this Agreement.

3. Title.

3.1. Prior to Closing, the City shall have the right to obtain a Title Commitment for the Real Property (the "Title Commitment") at the City's sole cost and expense. In the event the Title Commitment shows that the Seller is not vested with good, marketable and insurable fee simple title to the Real Property, or that the Real Property is subject to liens, encumbrances, taxes or assessments which will not be discharged prior to Closing, the City shall have the right, in its sole and absolute discretion, to declare this Agreement null and void pursuant to Section 3.2 of this Agreement. Alternatively, the City may accept the Real Property, subject to such matters as set forth on Exhibit "A" attached to this Agreement (collectively, the "Permitted Exceptions"). The condition of title as described in this Section 3.1 shall be the standard of marketable title that Seller shall deliver at the Closing. If Seller delivers such title and except for the Permitted Exceptions as set forth in Exhibit "A", such title will be satisfactory and acceptable to the City under Sections 3.4 and 7.2 herein.

3.2. Prior to Closing, the City shall have the right to obtain a survey (the "Survey") of the Real Property, which Survey shall be prepared at the City's sole cost and expense. Seller shall grant to the City, and its employees and agents, access to the Real Property sufficient for the preparation of the Survey, including without limitation: (i) the actual dimensions of, and area within, the Real Property, (ii) the location of any easements, setback lines, encroachments, or overlaps thereon and the outside boundary lines of all improvements; (iii) all easements, setback lines, and other matters referred to on the Title Commitment; (iv) access to and from the Real Property from any publicly dedicated streets or roads; and (v) any areas within the Real Property that have been designated by any federal, state or other governmental agency or body as being subject to special, or increased flooding hazards. If required by the City, the Survey shall be prepared and certified by a surveyor licensed in the State of Wyoming and, if required, shall be sufficient to allow issuance of an ALTA Extended Coverage Title Policy.

3.3. Within five (5) business days following the execution of this Agreement (or within five (5) business days of delivery of the Title Commitment to Seller, as applicable for Section 3.3(a) and 3.3(b)), Seller shall deliver to the City the following:

(a) True, complete and legible copies of all documents referred to in the Title Commitment to the extent that any such document **has not been filed** for record in the office of the Laramie County Clerk and ex-officio register of deeds;

(b) True, complete and legible copies of all documents that are known to Seller, that are not referred to in the Title Commitment, and that may affect the marketability of title to the Real Property;

(c) Any soils, geological, and engineering studies;

(d) Copies of any entitlements or permits relating to the development of the Real Property;

(e) True and complete copies or originals of any lease or occupancy agreements for any portion of the Real Property;

(f) Copies of environmental studies in the possession of Seller pertaining to the Real Property;

(g) Any notices of violations of law received by Seller during the period of time that Seller has owned the Real Property;

(h) All mortgages, notes and loan documents for any mortgage which encumbers the Real Property on the date hereof, which mortgages, notes, and loan documents shall be discharged by the Seller prior to closing; and

(i) Copies of any and all materials relating to pending or present litigation involving the Real Property.

3.4. The City shall have twenty (20) business days from the date of receipt of the Title Commitment referred to in Section 3.1 or twenty (20) business days following receipt of documents to be provided by the Seller pursuant to Section 3.3, whichever period is longer, in which to examine the same. If the City finds title to the Real Property to be other than as described in Section 3.1, hereof, the City shall, no later than the expiration of said period of twenty (20) business days, notify Seller in writing specifying the defect or defects; provided that, if the City fails to give Seller written notice of such defects before the expiration of said period of twenty (20) business days, the defects shown in the Title Commitment or in documents provided by Seller pursuant to Section 3.3 shall be deemed to be Permitted Exceptions and waived as title objections. The City may raise as additional objections, however, any defect first shown by any title update between the date of the Title Commitment and the Closing Date by giving Seller written notice of any such defect within five (5) business days after the City first has notice of same. If the City has given Seller timely written notice of defects that render the title other than as required by Section 3.1 of this Agreement (“Defects”), and only in the event that the Defects were the result of Seller’s action or caused by Seller’s failure to act, Seller shall use its best efforts to cause such Defects to be cured within ten (10) business days following receipt of such notice. In the event the Seller fails to eliminate such Defects, the City shall have the right to terminate this Agreement pursuant to Section 5.1. Notwithstanding the foregoing, the City shall not be deemed to have waived any mortgage, deed of trust, judgment lien, tax lien, mechanic’s or materialman’s lien, delinquent tax or assessment, monetary encumbrance, lease,

license, option, right of first refusal, purchase right, or other matter created by, through, or under Seller unless the City expressly approves such matter in writing.

3.5. In the event the Seller creates any liens or encumbrances on the Real Property which are capable of being satisfied by the payment of money at the Closing, Seller shall be obligated to use the Purchase Price to cure the Defects.

3.6. The date for elimination of the Defects may be extended until Closing. In the event that Seller does not eliminate any Defect prior to or at the Closing, as the same may be extended under the preceding provision, the City shall have the option of either: (i) closing and accepting the title “as is,” without reduction in the Purchase Price and without claim against Seller therefor, or (ii) cancelling this Agreement.

3.7. Seller shall not create any new exceptions to title, and shall use its best efforts to prevent any other person or entity from creating new exceptions to title to the Real Property prior to Closing.

4. *Inspection Period.*

4.1. The City shall have thirty (30) calendar days following the date of execution of this Agreement (the “Inspection Period”) to make such physical, zoning, marketing and other investigations, tests and studies, including but not limited to soil tests and borings, Phase I environmental surveys, utility availability surveys, and confirmation of subdivision map requirements and restrictions as the City may deem appropriate (“the City’s Inspections”). The City’s Inspections shall be at the City’s sole cost and expense. Subject to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.*, constitutional and statutory limitations applicable to Wyoming municipalities, and the availability of lawfully appropriated funds, the City shall be responsible for repairing physical damage to the Real Property caused by the City’s Inspections, reasonable wear and tear excepted. Nothing in this Section shall be construed as a waiver of the City’s governmental immunity or as creating liability beyond that provided by applicable law. Subject to the foregoing limitations, and only to the extent permitted by law and payable from lawfully appropriated funds, the City shall indemnify and hold Seller harmless from third-party claims for bodily injury, death, or physical damage to tangible property to the extent directly caused by the City’s Inspections, excluding claims or damages arising from the mere discovery of adverse facts or conditions, pre-existing conditions affecting the Real Property, or the act, omission, negligence, or willful misconduct of Seller or Seller’s agents, contractors, employees, tenants, invitees, or representatives.

4.2. The City, at its option, may conduct, at its sole cost, such independent investigation and inspection of the Real Property as the City shall deem reasonably necessary to ascertain the “environmental” condition of the Real Property (“the City’s Environmental Investigation”). The City assumes no responsibility or liability as a result of any inaccuracies arising in or from the City’s Environmental Investigation, and makes no representations or warranties whatsoever regarding (i) the completeness of the City’s Environmental Investigation, or (ii) the truth or accuracy of the City’s Environmental Investigation. If Seller conducts any

environmental testing of the Real Property subsequent to the date of this Agreement, Seller shall provide the City with a copy of any report promptly after its receipt of same. Seller shall have no obligation to remedy any environmental problem on the Real Property.

5. *Termination.*

5.1. In the event the City, in the City's sole and absolute discretion, determines that any matter shown in the City's Inspections or Environmental Investigation is not satisfactory either during or subsequent to the Inspection Period, the City shall have the right, at any time prior to the Closing, to terminate this Agreement by giving Seller written notice thereof (the "Termination Notice"), in which event, both parties shall be released from all further obligations under this Agreement.

5.2. If the City determines, in its sole discretion, that the conditions described in Sections 6.1(d) or 6.1(e) cannot be satisfied, the City may terminate this Agreement by written notice to Seller. Upon such termination, neither party shall have any further obligation under this Agreement except for obligations that expressly survive termination.

6. *Conditions Precedent.*

6.1. The City's obligation to close this transaction shall be subject to fulfillment of the following conditions precedent:

(a) Seller shall, at Seller's sole cost and expense, obtain releases, at or prior to Closing, for any and all liens or encumbrances affecting the Real Property caused by Seller's action or caused by Seller's failure to act as of the date of Closing, pursuant to the terms of this Agreement;

(b) Seller shall not be in default in its obligations under this Agreement; and

(c) The City, at City's cost, shall have received a title insurance commitment and shall be unconditionally entitled to receive, upon Closing, the Owner's Title Policy described in Section 12.3.

(d) The City shall have determined, in its sole discretion, that the donated, restricted, grant, or other designated funds proposed to be used for the Purchase Price and Closing costs may lawfully be used for acquisition of the Real Property and that such use is consistent with all applicable donor restrictions, grant conditions, City approvals, budgetary appropriations, accounting requirements, and applicable law.

(e) The City shall have obtained all approvals required by applicable law, City ordinance, City policy, budgetary authority, or direction of the Governing Body, including, if applicable, approval of this Agreement by the Governing Body of the City of Cheyenne.

6.2. In the event any of the foregoing conditions precedent are not fulfilled as of Closing (or earlier date where specified otherwise), then the City shall have the option of either: (i) waiving the condition and closing “as is” without reduction in the Purchase Price or claim against Seller therefor, provided that Seller assigns to the City all of Seller’s right, title and interest to the title insurance policy it obtained when it acquired the Real Property, or (ii) cancelling this Agreement by written notice to Seller.

7. *Seller’s Representations and Warranties.*

7.1. Seller hereby represents and warrants to the City that the following are true statements as of the date of this Agreement and shall be true as of the date of Closing, and Seller agrees to deliver a certificate confirming that the following representations and warranties are true as of the date of the Closing.

(a) Seller is a legal entity organized, existing, and in good standing under the laws of the State of Utah, is authorized to do business in the State of Wyoming to the extent required by law, and has full power and authority to own, sell, and convey the Real Property and to execute and perform this Agreement. The person signing this Agreement on behalf of Seller has been duly authorized to do so, and this Agreement is binding upon Seller in accordance with its terms.

(b) Seller now has and will have at Closing good, marketable, insurable, and indefeasible fee simple title to the Real Property, subject only to the Permitted Exceptions. To Seller’s actual knowledge, no party, except as expressly disclosed in writing to the City, has or shall have any right in, or right to acquire, the Real Property. Seller has not created, granted, suffered, or permitted any lien, lease, license, option, right of first refusal, purchase right, occupancy right, encumbrance, or other title matter affecting the Real Property except as expressly disclosed in writing to and approved by the City.

(c) At Closing, the Real Property shall be free from any and all actions, suits, claims, assessments or proceedings pending or, to the knowledge of Seller, threatened that could materially adversely affect the ownership, operation, or maintenance of the Real Property or Seller’s ability to perform hereunder.

(d) To Seller’s actual knowledge, without independent investigation, neither Seller nor the Real Property is currently subject to any existing, pending, or threatened investigation, notice, order, claim, demand, enforcement action, or remedial obligation by any governmental authority relating to hazardous substances, solid wastes, environmental contamination, or violation of Applicable Environmental Laws.

(e) To Seller’s actual knowledge, without independent investigation, Seller has not released, disposed of, stored, treated, generated, or arranged for the disposal of any hazardous substance, solid waste, petroleum product, or other regulated material on, under, or from the Real Property in violation of Applicable Environmental Laws. Nothing

in this Section limits the City's right to terminate this Agreement before Closing based on the City's Inspections or Environmental Investigation.

(f) There are no parties in possession of any portion of the Real Property, whether as lessees, tenants at sufferance, trespassers or otherwise.

7.2. Seller shall not intentionally cause any of the representations and warranties contained herein to become materially incorrect, nor authorize any action which would do so. If subsequent to the execution of this Agreement and on or before Closing, Seller nonetheless has knowledge that any of the representations and warranties set forth herein have become incorrect in any respect (a "Discrepancy"), Seller shall promptly notify the City, in writing, of the occurrence of such event. The City shall have a right to approve or disapprove any such Discrepancy, which approval or disapproval shall be given by written notice delivered to Seller within ten (10) business days prior to the Closing for the City to evaluate the effect of such Discrepancy. If the City waives such Discrepancy, and elects to acquire the Real Property, Seller's representations and warranties contained herein shall be deemed to have been made as of the Closing, subject to the waived Discrepancy. If the City disapproves of the Discrepancy, and Seller fails to cure same, then upon written notice thereof to Seller this Agreement shall be terminated and all rights and obligations of the parties hereunder shall terminate.

7.3. Except for the representations and warranties of Seller set forth in Section 7.1, which shall survive for one (1) year from the Closing, the express representations and warranties made in this Agreement shall merge into any instrument of conveyance delivered at Closing and shall not survive Closing. The delivery and acceptance of a special warranty deed shall not limit, waive, merge, or otherwise affect Seller's representations, warranties, covenants, indemnity obligations, or other obligations that expressly survive Closing under this Agreement.

7.4 Seller acknowledges that the City intends to acquire the Real Property for affordable housing purposes and may, after Closing, enter into a long-term ground lease, development agreement, disposition agreement, financing arrangement, or similar arrangement with a third-party developer. Seller shall have no approval right, reversionary interest, continuing obligation, or other right or responsibility with respect to the City's post-Closing use, lease, development, financing, transfer, or disposition of the Real Property. Nothing in this Agreement obligates the City to enter into any post-Closing transaction with any third party or to approve, permit, or complete any particular affordable housing project on the Real Property.

8. *Risk of Loss.* The Real Property shall be conveyed to the City in substantially and materially the same condition as on the date this Agreement is executed by the City, ordinary wear and tear excepted, free of all tenancies or occupancies.

9. *Default Provisions.*

9.1. In the event of the wrongful failure or refusal of the City to close this transaction after sixty (60) calendar day's written notice, Seller shall be entitled to those remedies as may be provided by law.

9.2. In the event of Seller's failure to close in accordance with the terms and provisions of this Agreement for sixty (60) calendar days after written notice, the City, at its option and as the City's sole and exclusive remedy for default of Seller, shall have the right either to terminate this Agreement or seek specific performance of the Seller's obligations hereunder.

10. *Prorations.* All pro-ratable items, if any, shall be prorated as of the date of Closing.

11. *Closing Costs and Expenses.* At Closing, the City shall pay the premium for the Title Insurance Policy to be issued to the City. The City shall pay all costs associated with surveys, inspections and environmental assessments conducted by the City. The City shall pay recording fees necessary to record instruments received by the City at closing and one-half of miscellaneous closing costs and fees charged by the title insurance company selected by the parties to close this transaction. Each party shall pay that party's attorney's fees, if any. Seller shall pay recording costs with respect to documents necessary to clear title at Closing and all instruments received by Seller at closing.

12. *Closing.*

12.1. The closing of this transaction shall be held on the first business day occurring fifteen (15) calendar days after the satisfaction of all of the conditions of Closing set forth in Section 6.1 or earlier as otherwise mutually agreed to by the parties (the "Closing Date"). The City shall select a title company located in Cheyenne, Wyoming, to prepare the closing documents. The parties shall diligently pursue and use best efforts to satisfy the conditions to closing and there shall be no unreasonable delay caused by either party. It is the parties intention to have all conditions to closing satisfied by the expiration of the Inspection Period.

12.2. At Closing, Seller shall deliver:

(a) A special warranty deed duly executed and acknowledged in proper form for recording, conveying to the City fee simple title in and to the Real Property, subject only to the Permitted Exceptions approved or deemed approved by the City pursuant to this Agreement;

(b) An assignment of all rights appurtenant to the Real Property, if any, as provided in Section 1, above;

(c) A title affidavit and a mechanic's lien affidavit;

(d) An affidavit of exclusive possession;

(e) An affidavit pursuant to Internal Revenue Code Section 1445(b)(2) with respect to Seller's status as a non-foreign person;

(f) A certificate, or other document acceptable to the City, confirming Seller's authority to sell the Real Property; and

(g) Such other documents as are usually required to insure the City's title.

12.3. At Closing, the City, at the City's expense, shall receive an owner's title insurance policy (the "Owner's Title Policy"), in a form acceptable to the City, issued by a title insurance company authorized to do business in the State of Wyoming, in the full amount of the Purchase Price, insuring the City's fee simple title to the Real Property, subject only to the Permitted Exceptions and the printed exceptions contained in the standard form of the Owner's Title Policy.

13. *Brokers.* The parties each represent and warrant to the other that no party to this transaction shall be responsible for the payment of any compensation or commission due any real estate agent, broker, salesman or finder unless that party has engaged the real estate agent, broker, salesman, or finder in writing. If a claim for compensation or commission in connection with this transaction is made by any agent, broker, salesman or finder claiming to have dealt through or on behalf of one of the parties hereto, such party shall indemnify, defend and hold harmless the other party hereunder from and against all liabilities, damages, claims, costs, fees and expenses whatsoever (including reasonable attorney's fees and court costs at all trial and appellate levels) with respect to said claim for compensation or commission. Anything to the contrary notwithstanding, the provisions of this paragraph shall survive the Closing and any cancellation or termination of this Agreement. With respect to the City, any obligation under this Section is subject to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101 *et seq.*, constitutional and statutory limitations applicable to Wyoming municipalities, and the availability of lawfully appropriated funds. Nothing in this Section shall be construed as a waiver of the City's governmental immunity or as creating liability beyond that provided by applicable law.

14. *Assignment.* Neither party shall have the right to assign this Agreement without the express written consent of the other Party.

15. *Access.* The City, and the City's agents, employees, and contractors, shall have the right during the term of this Agreement to enter upon the Real Property for purposes of making investigations, tests and studies, subject to the notice requirement in this Section and the City's repair obligations and governmental-immunity protections set forth in Section 4.1. The City shall provide written notification to Seller at least three (3) business days prior to entering upon the Real Property for the purposes of making investigations, tests, or studies. The obligations in this Section and Section 4.1 shall survive the Closing and any cancellation or termination of this Agreement.

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16. Notices. Any notices required or permitted to be given under this Agreement shall be delivered by hand or mailed by certified or registered mail, return receipt requested, or overnight delivery service in postage prepaid envelope, and addressed as follows:

If to the City: City of Cheyenne
Attn: Amber Ash, Chief of Staff
2101 O'Neil Avenue
Cheyenne, WY 82001

If to the Seller: KT Land Holdings, LLC
Attn: Kory Smith
595 S. Riverwoods Parkway, Suite 400
Logan, UT 84321

With a copy to: Wasatch Acquisitions and Capital, Inc.
Attn: Tyler Raymond
595 S. Riverwoods Parkway, Suite 400
Logan, UT 84321

17. *Operation of the Real Property.*

17.1. During the period between the date hereof and the Closing, Seller shall:

(a) Keep the Real Property in substantially the same repair and condition as of the date hereof, but excluding damages to the Real Property caused by the City's inspections or surveys;

(b) Comply with all state and municipal laws, ordinances, regulations, and orders relating to the Real Property;

(c) Comply with all the terms, conditions, and provisions of all liens, mortgages, agreements, insurance policies, and other contractual arrangements relating to the Real Property, make all payments due thereunder, and suffer no default therein;

(d) Without written approval of the City, neither negotiate nor enter into any new contract or modify any existing contract affecting the use or operation of the Real Property which cannot be terminated without charge, cost, penalty, or premium on or before the Closing;

(e) Operate, manage, and maintain the Real Property in the usual and customary manner for similar property; and

(f) Promptly notify the City in writing if any material change occurs in the occupancy or conditions affecting the Real Property.

18. *Miscellaneous.*

18.1. This Agreement shall be construed and governed in accordance with the laws of the State of Wyoming. Except for enforcement of the terms and conditions of this Agreement as between the parties, the City reserves all defenses and immunities under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable constitutional and statutory provisions of the State of Wyoming. All legal proceedings shall occur in a court of competent jurisdiction sitting in Laramie County, Wyoming.

18.2. Seller acknowledges that the City is a Wyoming municipality subject to the Wyoming Public Records Act, Wyo. Stat. § 16-4-201 *et seq.* Nothing in this Agreement shall be construed to require the City to withhold any record or information from disclosure where disclosure is required by applicable law.

18.3. In the event any term or provision of this Agreement be determined by appropriate judicial authority to be illegal or otherwise invalid, such provision shall be given its nearest legal meaning or be construed as deleted as such authority determines, and the remainder of this Agreement shall be construed to be in full force and effect.

18.4. In construing this Agreement, the singular shall be held to include the plural, the plural shall be held to include the singular, the use of any gender shall be held to include every other and all genders, and captions and paragraph headings shall be disregarded.

18.5. All of the exhibits attached to this Agreement are incorporated in, and made a part of, this Agreement.

18.6. This Agreement constitutes the entire understanding and agreement between the parties, and there are no understandings, agreements, representations or warranties except as specifically set forth herein.

18.7. This Agreement may not be changed, altered or modified except by an instrument in writing signed by the party against whom enforcement of such change would be sought.

18.8. This Agreement shall be binding upon the parties hereto and their respective successors and permitted assigns.

18.9. The failure of any party at any time or times to require performance of any provision hereof shall in no manner affect its right at a later time to enforce the same. No waiver by any party of any condition, or of any breach of any covenant, agreement, representation or warranty contained in this Agreement, in any one or more instances, shall be deemed to be or construed as a further or continuing waiver of any such condition or breach or waiver of any other condition or of any breach of any other covenant, agreement, representation or warranty.

18.10. If the final date of any period provided for herein for the performance of an obligation or for the taking of any action falls on a Saturday, Sunday or legal holiday, then the time of that period shall be deemed extended to the next day which is not a Saturday, Sunday or

legal holiday. All time periods expiring on a specific date or period herein shall be deemed to expire at 5:00 p.m. Mountain Standard or Mountain Daylight Time, as applicable.

18.11. This Agreement may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed original, but such counterparts together shall constitute but one agreement.

18.12. During the term of this Agreement, Seller shall not list the Real Property for sale, rent or exchange or otherwise offer the Real Property for sale, rent or exchange. Seller shall have the right to disclose this Agreement to any lending institution.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the dates set forth in their respective acknowledgments below. The parties' signature and acknowledgment pages may appear separately and shall be deemed part of one and the same Agreement.

[SEPARATE SIGNATURE AND ACKNOWLEDGMENT PAGES FOLLOW]

SIGNATURE AND ACKNOWLEDGMENT PAGE OF BUYER
City of Cheyenne

CITY OF CHEYENNE

By: _____
Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Patrick Collins, Mayor of the City of Cheyenne, this _____ day of _____, 20____.

Witness my hand and official seal.

Notary Public

My commission expires: _____